defects in the agreement indicate the stronger party engaged in a systematic effort to impose arbitration on the weaker party not simply as an alternative to litigation, but to secure a forum that works to the stronger party's advantage. [Citation omitted.]" (*Id*. at 516-517.) "Severance may be properly denied when the agreement contains more than one unconscionable provision, and ' "there is no single provision a court can strike or restrict in order to remove the unconscionable taint from the agreement." [Citation.]' [Citations omitted.]" (*Cook, supra,* 102 Cal.App.5th at 329.)

The Court finds severance of the unconscionable terms is not appropriate in this case in part because unconscionability permeates the Arbitration Agreement. The two unconscionable provisions go to the heart of the agreement to arbitrate by creating a sweeping and virtually unlimited in time or scope agreement by the Plaintiff to arbitrate any claim he may have against anyone affiliated with Welcome Market as an "agent," employee, shareholder, officer, or director and by compelling Plaintiff to waive bringing or even participating in a PAGA action as a member of a class of aggrieved, represented employees. These provisions are central to the Arbitration Agreement, such that the unconscionability of those provisions is also central to the agreement.

It is also not clear to the Court how severance could be effectuated to extirpate the unconscionable aspects of the agreement without reforming the language of the agreement by adding terms such as ", in light of the broad definition of Company which is a term used throughout the remainder of the agreement, the absence of language that limits the duration of the agreement's application and scope of claims against Welcome Market that would be compelled to arbitration even if the definition of "Company" were limited to Welcome Market itself, and the manner in which the Class Action Waiver paragraph is drafted. The Court finds the interests of justice do not support severance but warrant denial of enforcement of the Arbitration Agreement for unconscionability. (*Ramirez, supra,* 16 Cal.5th at 516-517.)

**8. 9:00 AM CASE NUMBER: C25-03586**
**CASE NAME: ED PENNING VS. FAIRWAY INDEPENDENT MORTGAGE CORPORATION**
**HEARING ON DEMURRER TO: COMPLAINT**
**FILED BY: FAIRWAY INDEPENDENT MORTGAGE CORPORATION**
***TENTATIVE RULING:***

On the Court's own motion, the hearing on this matter is continued until July 8, 2026. No appearance is required on July 1, 2026.

**9. 9:00 AM CASE NUMBER: MS5031**
**CASE NAME: PETITION OF: PARAQUAT CASES**
***HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE**
**FILED RE: KRISTINA F. MOORE**
**FILED BY: CHEVRON U.S.A. INC**
***TENTATIVE RULING:***
**Summary**

This Tentative Ruling applies to Lines 9, 10, 11 and 12. Defendants Chevron U.S.A Inc's, Syngenta AG, et. al, and Plaintiffs Collen Clasen and William DeHaven, et. al. have filed Motions and Verified Applications of four attorneys ("Applicants") for *Pro Hac Vi*ce Admission. These motions are unopposed and are **granted**.